

5.4.2 No legal basis for exercise of discretion

In T 2431/19 the board held that R. 137(5) EPC provided for a mandatory requirement that amended claims must fulfil to be allowable. R. 137(5) EPC did not refer to the act of making an amendment, but rather to the amended claims themselves. More specifically, the phrase "amended claims may not" or "nor may they" in R. 137(5) EPC expressed - in the form of a prohibition - a substantive and mandatory requirement for amended claims to be allowable. This requirement did not leave any room for discretion on the part of the deciding body. Accordingly, and contrary to R. 137(3) EPC, there is no reference to consent by the examining division in R. 137(5) EPC. The board found that R. 137(5) EPC hence relates to a matter of substantive law rather than to a matter of procedural law. It lays down substantive requirements, non-compliance with which leads to the refusal of a European patent application under Art. 97(2) EPC (see also T 1126/11). R. 137(5) EPC does not, however, provide a separate legal basis for taking a discretionary decision on the admittance of amended claims which could be relied upon independently from R. 137(3) EPC. In the case in hand the non-admittance of an amended set of claims on the basis of that Rule alone therefore constituted a substantial procedural violation under R. 103(1)(a) EPC.

In T 1866/15 the board endorsed the findings of T 2431/19, finding that if an amendment did not comply with R. 137(5) EPC, it was not allowable on that ground alone and the examining division no longer had discretion whether or not to admit it under R. 137(3) EPC.

5.4.3 Amendments filed to meet an objection

In T 141/04 the board held that R. 86(4) EPC 1973 does not apply if a feature originally disclosed in the description is added to an originally-filed claim in order to meet an objection raised. It noted that the Guidelines were in line with the case law of the boards of appeal. The board noted that, notwithstanding the applicant's right to introduce subject-matter from the description into the claims, the exercise of such a right was not without restrictions, as indicated by Art. 123(1) EPC 1973 and R. 86(3) EPC 1973. Therefore, the examining division could possibly have exercised its discretion under R. 86(3) EPC 1973 to refuse to admit this request, as it was filed for the first time during the oral proceedings before the examining division and apparently comprised unsearched subject matter. As such, the request could not reasonably be considered as clearly allowable, this latter being a usually applied requirement for admissibility of a request at such a late stage of the proceedings. On the contrary, the potential requirement for an additional search would have represented an unreasonable protraction of the examination procedure.

In T 274/03 the board noted that it was clear that post-search "switching" of subject-matter clearly implied a significant change in the nature of the subject-matter being claimed which was not normally comparable to the addition of features taken from the description to further define an element that was already a feature of the original main claim. The board was of the opinion that an amendment amounting to the restriction of an original main claim by including complementary features from the original description into the claim

represented an admissible reaction of an applicant vis-à-vis an objection against the patentability of the unamended claim and did not constitute an abuse of the system of the nature which R. 86(4) EPC 1973 was introduced to prevent (T. 377/01, T. 708/00). This type of amendment should not therefore in general be judged as contravening the requirements of the rule, even though an additional search could be required. In this context it was to be observed that the implicit finding of lack of unity between the originally claimed and later claimed subject-matter, which was a prerequisite for an objection under R. 86(4) EPC 1973, had to, with amendments of the type under consideration here, be a posteriori. The Guidelines made it clear however that this form of objection to lack of unity should be the exception, with benefit of the doubt being given to the applicant. See also T. 2334/11.

5.5. Non-compliance with Rule 137(5) EPC: a ground for refusing an application

In T. 2459/12 the board noted that in T. 1981/12 doubt was also expressed whether R. 137(5) EPC could be an appropriate basis for refusing an application. The board in T. 1981/12 concluded that, by reference to T. 708/00 and T. 442/95, an amendment not complying with this rule was inadmissible. According to Art. 97(2) EPC, a European patent application which does not meet the requirements of the EPC is refused unless "this Convention provides for a different legal consequence". R. 137(5) EPC sets out a requirement to be met by amended claims of a European patent application, and neither in the Rule itself nor elsewhere in the EPC is any "different legal consequence" provided for the case where this requirement is not met. The board therefore judged that a failure to meet the requirements of R. 137(5) EPC was a ground for refusal of the application under Art. 97(2) EPC (see also T. 2431/19, T. 1126/11). The board stated that this was also entirely consistent with the view taken in T. 708/00 according to which R. 86(4) EPC 1973 was regarded as having "the status of an administrative provision in the context of the search and grant procedures", as is "the case for the unity of invention requirement in general".

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1. Legal character of opposition proceedings and applicable principles

According to Art. 99(1) EPC, within nine months of the publication of the mention of grant of the European patent any person may give notice to the EPO of opposition to that patent. Opposition proceedings (see Art. 99 to 105 and R. 75 to 89 EPC) constitute an exception to the general rule under the EPC that after grant a European patent is no longer within the competence of the EPO but becomes a bundle of patents within the jurisdiction of the designated contracting states (**T 9/87**, OJ 1989, 438). They allow, during a limited period